

the imposition of Monetary Sanctions and may result in the issuance of an Order to Show Cause Re: Removal of the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF VIRGINIA WALTERS

CASE NUMBER: 25PB-0032987

This matter is on calendar for hearing on the Administrator's Request for Clarification and Objection for Need to Amend Waiver of Accounting and Petition for Final Distribution. The Waiver of Accounting and Petition for Final Distribution was previously continued for several reasons. The trustee of the trust had not been previously identified throughout these proceedings. The request identifies a separate case where Petitioner, Kathleen Walters, was acknowledged as trustee of the William C. Walters and Virginia M. Walters. This information was not included in the Petition for Final Distribution as required. The Court finds that the identity of the trustee has been clarified.

The request indicates confusion based on that separate case regarding ownership of the subject real property. The prior case found that the real property was not a trust asset but was owned by William and Virginia Walters. The present case seeks to probate the will of Virginia Walters, which disposes of the remainder of the decedent's property not included in the trust. This property includes the subject real property. The will purports to devise the entirety of the estate to the trustee of the William C. Walters and Virginia M. Walters Revocable Trust. As a result, the trustee is the only individual entitled to distribution. Therefore, the assignments of interest and waiver of accountings are without effect. Only the trustee of the trust can waive the requirement of an accounting. Considering Petitioner is also the trustee, the Court will find the requirement of a final accounting waived. The Court will also find the acknowledgement under Local Rule 15.10(L) satisfied by the request.

Additionally, the Court previously noted that the Petition failed to address whether notice to the Franchise Tax Board had been provided as required by Probate Code Section 9202(c). Item 8 of the Petition states that notice to the Franchise Tax Board is not required, however this notice provision is mandatory. The request advises that the Franchise Tax Board was given notice, however it is unclear when this notice was provided and whether the requisite time for filing a claim has lapsed. An amended Petition is still required to address the issues regarding the proposed distribution. The Request and Objection is **DENIED**, to the extent that it requests to dispense with the need to file and serve an amended Petition for Final Distribution. The Court notes the future date of September 21, 2026, for further proceedings on the Waiver of Account and Petition for Final Distribution. If that date does not provide Petitioner sufficient time to correct the documents, Petitioner must appear to request a different date. **No appearance is necessary on today's calendar.**

ESTATE OF NANCY WARD

CASE NUMBER: CVPB17-0029140

This matter is on calendar for Status of Administration. This matter continues to trail the related trust matter, case 29247. **An appearance is necessary on today's calendar.**

TRUSTS

IN RE: DONALD LEE GALUSHA AND ANN MARIE GALUSHA 2022 REVOCABLE LIVING TRUST

CASE NUMBER: 26PB-0033482

This matter is on calendar for hearing on a Petition for Order Determining Trust's Title to Real Property. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, she intended to hold the subject property in the name of the Trust. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. Additionally, the Petition assumes that the Trustor did not realize the property was not held in the name of the Trust and would have transferred the subject real property in the name of the Trust if she had known. There is no evidence to support this assumption. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST DATED JULY 29, 2003

CASE NUMBER: CVPB20-0030695

This matter is on calendar for further proceedings on a Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. The matter has been continued several times to allow for the filing of copy of the settlement agreement from October of 2025. A copy of the settlement agreement has still not been filed, therefore the Court is unable to determine the terms of the agreement, whether the agreement resolves all pending petitions and motions, and whether the requested judgment is appropriate. The Court notes a new Notice of Hearing has not been filed and served for today's date. A Status Report has been filed which indicates the parties are attempting to settle the matter informally and request a continuance. The matter is continued to **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. **No appearance is necessary on today's calendar.**

IN RE: JAMES W. SACCO AND JOYCE A. COX REVOCABLE TRUST OF 2010

CASE NUMBER: 26PB-0033520

This matter is on calendar for hearing on a Petition for Orders Compelling an Accounting and for Costs and Attorney's Fees. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED** to the extent that it requests an order compelling an accounting. The determination of attorney's fees and costs which shall be determined by the filing of a noticed motion. A proposed Order has been lodged and will be modified to reflect the Court's ruling. The matter is continued to **Monday, November 23, 2026, at 2:30 p.m. in Department 44** for status of accounting. **No appearance is necessary on today's calendar.**